

STATE OF NEW YORK

7951--A

2025-2026 Regular Sessions

IN SENATE

May 14, 2025

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state finance law, the highway law and the vehicle and traffic law, in relation to establishing the native/pollinator planting fund, the pollinator highway program and creating distinctive native plant or pollinator license plates

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The state finance law is amended by adding a new section 99-tt to read as follows:

§ 99-tt. Native/pollinator planting fund. 1. There is hereby established in the joint custody of the commissioner of taxation and finance and the state comptroller a special fund to be known as the native/pollinator planting fund. It shall consist of amounts credited to the fund in accordance with this section.

2. The fund shall consist of: (a) revenue from appropriations or other money authorized by the state legislature and specifically designated to be credited to the fund; (b) interest earned on money in the fund; (c) state and federal grants for green infrastructure projects; and (d) revenue generated from the sale of a dedicated distinctive license plate featuring native plant or pollinator imagery. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the general fund.

3. Money in the fund shall be expended to support the establishment and implementation of the program established under section sixty-seven of the highway law, including grants to municipalities and partnerships with environmental organizations. Priority funding shall be given to projects demonstrating significant community and environmental benefits.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 4. The department of transportation shall annually, not later than
2 December thirty-first, report on the activity of the fund to: (a) the
3 chairs of the senate and the assembly environmental conservation commit-
4 tees; (b) the chairs of the senate and the assembly transportation
5 committees; and (c) the chairs of the senate finance and the assembly
6 ways and means committees.

7 § 2. The highway law is amended by adding a new section 67 to read as
8 follows:

9 § 67. Pollinator highway program. 1. The department shall establish a
10 program to promote the cultivation and maintenance of native flowering
11 plants, grasses and shrubs on land bordering state highways and on other
12 public lands. The department shall establish objectives for the program
13 including: (a) incorporating native plantings into green infrastructure
14 solutions, such as rain gardens, bio-swales and permeable landscapes to
15 reduce runoff, filter pollutants and improve water quality; (b) estab-
16 lishing and enhancing habitats for pollinators, including bees, butterf-
17 lies and other beneficial insects by prioritizing plant species native
18 to the region; and (c) utilizing native vegetation to improve soil
19 health, sequester carbon and reduce the need for emissions-intensive
20 maintenance activities such as mowing and pesticide applications.

21 2. The department, in consultation with the department of agriculture
22 and markets, the department of environmental conservation and relevant
23 environmental organizations, shall: (a) identify and prioritize suitable
24 locations and areas that would benefit from improved stormwater manage-
25 ment, reduced maintenance or enhanced biodiversity; (b) develop stand-
26 ards for selecting and maintaining plant species to ensure their ecolog-
27 ical suitability, resilience and effectiveness in achieving the
28 program's goals; (c) encourage the use of innovative stormwater manage-
29 ment techniques that integrate native vegetation; and (d) coordinate
30 with municipalities, regional planning agencies and environmental groups
31 to implement pilot projects and community-based initiatives.

32 3. The department shall support the program's implementation by estab-
33 lishing: (a) grants to municipalities for designing and installing green
34 infrastructure projects utilizing native plantings; (b) partnerships
35 with local nurseries and landscapers to supply native plants and support
36 job creation; (c) public-private partnerships to reduce costs and
37 enhance the program's outreach; and (d) in consultation with the depart-
38 ment of motor vehicles, a distinctive license plate featuring native
39 plant or pollinator imagery, with the proceeds supporting the program's
40 activities and grants to municipalities.

41 4. The department shall promote community engagement and education by:
42 (a) developing and disseminating educational materials about the envi-
43 ronmental, economic and health benefits of native plantings and stormwa-
44 ter management; (b) encouraging citizen involvement through volunteer
45 programs, local workshops and monitoring initiatives; and (c) collab-
46 orating with school and community organizations to promote environmental
47 stewardship and awareness.

48 5. The department shall establish measurable goals and metrics to
49 assess the program's effectiveness, including: (a) the reduction in
50 stormwater runoff and improvement in water quality; (b) increases in
51 pollinator populations and biodiversity; (c) cost savings in maintenance
52 and operations; and (d) annual reporting to the general public and the
53 legislature on the program's progress.

54 6. The department shall promulgate rules and regulations to carry out
55 the purposes of this section within one year of its effective date.

1 § 3. The vehicle and traffic law is amended by adding a new section
2 404-ff to read as follows:

3 § 404-ff. Distinctive native plant or pollinator license plates. 1.
4 Any person residing in this state shall, upon request, be issued a
5 distinctive native plant or pollinator license plate of a design
6 approved by the commissioner, after consultation with the commissioner
7 of environmental conservation and the commissioner of transportation.
8 Application for such license plate shall be filed with the commissioner
9 in such form and detail as the commissioner shall prescribe.

10 2. A distinctive native plant or pollinator plate issued pursuant to
11 this section shall be issued in the same manner as other number plates
12 upon the payment of the regular registration fees prescribed by section
13 four hundred one of this article; provided, however, that an additional
14 annual service charge of twenty-five dollars shall be charged for such
15 plate. All monies received as annual service charges under this section
16 shall be deposited to the credit of the native/pollinator planting fund
17 established pursuant to section ninety-nine-tt of the state finance law;
18 and shall be used to support the establishment and implementation of the
19 pollinator highway program established under section sixty-seven of the
20 highway law.

21 § 4. 1. A distinctive plate established pursuant to section 404-ff of
22 the vehicle and traffic law as added by section three of this act shall
23 only be designed, produced and issued upon the delivery to the depart-
24 ment of motor vehicles of a surety bond in the amount of \$6,000, which
25 shall be executed by a surety company authorized by the department of
26 financial services to transact business in this state. Provided, howev-
27 er, that if the commissioner of motor vehicles shall have received prior
28 to plate design, production and issuance at least two hundred orders for
29 such distinctive plate together with the additional annual service
30 charge applicable to each such order, which shall be non-refundable, no
31 such surety bond shall be required. Any additional service charges
32 collected pursuant to this section shall be deposited pursuant to the
33 provisions of section ninety-nine-tt of the state finance law.

34 2. If, upon the expiration of two years following the date upon which
35 distinctive plates in the series are first available for sale 200 or
36 more sets of such plates are sold, a bond delivered pursuant to this
37 section shall be discontinued. If fewer than 200 sets of such plates are
38 sold by such time, the department of motor vehicles shall be entitled to
39 recover against the bond in an amount proportionate to such shortfall.

40 § 5. This act shall take effect immediately.